

## 26STCV00054 26STCV00054

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-21

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C513%2C08%2F21%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C08%2F21%2F2026)

Source SHA-256: 6fa5f566c6b2ecd6bb3ea8cc1bf3b7760c2d8bdaf6d99b3145719b4571380be4

Case Number: 26STCV00054 Hearing Date: August 21, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Jay Baumgardner

, et al.;

Plaintiffs,

vs.

Aaron Kaufman

, et al.,

Defendants.

Case No.:

26STCV00054

Hearing Date:

August 21, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion  
to Dismiss or Stay Action

MOVING PARTY: Defendants Aaron Kaufman, AK Holdings  
P, LLC, O Dev, LLC, Muso SPV, LLC, and nominal defendant Muso.AI Inc.

RESPONDING PARTY: Plaintiffs Jay Baumgardner, JB Music Data LLC,  
and Muso.AI, Inc.

Motion to Dismiss  
or Stay Action

The court considered the moving,  
opposition, and reply papers filed in connection with this motion.

REQUEST  
FOR JUDICIAL NOTICE

The court grants Defendants'  
Request for Judicial Notice as to Muso.AI's Certificate of Incorporation filed  
with the Delaware Secretary of State on June 29, 2017 pursuant to Evidence Code  
section 452, subdivision (c).

The court grants  
Defendants' request for judicial notice as to the complaint in Kaufman v.  
Baumgardner, C.A. No. 2026-0020-LWW in the Delaware Court of Chancery, the  
Affidavit of Service on Jay Baumgardner in that action, and the Civil Docket  
for Kaufman v. Baumgardner, Case No. 1:26-cv-0054-CFC-SRF in the U.S.  
District Court for the District of Delaware pursuant to Evidence Code section  
452, subdivision (d).

The court denies

Defendants' request for judicial notice of a Share Transfer Agreement as an improper subject of judicial notice. This ruling is not preclusive of Defendants' reliance on the Share Transfer Agreement as evidence to the extent it pertains to this motion.

## DISCUSSION

Specially

appearing defendants Aaron Kaufman, AK Holdings P, LLC, O Dev, LLC, Muso SPV, LLC, and nominal defendant Muso.AI Inc ("Defendants") move the court for an order dismissing the Complaint filed in this action by plaintiffs Jay Baumgardner, JB Music Data LLC, and Muso.AI, Inc. ("Plaintiffs") under the doctrine of forum non conveniens and because there is another action pending in Delaware. Defendants move in the alternative to stay this action pending resolution of the Delaware action.

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (2) To stay or dismiss the action on the ground of inconvenient forum." (Code Civ. Proc., § 418.10, subd. (a)(1).) "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." § 410.30, subd. (a).)

Courts use a two-step analysis when considering a forum non conveniens motion. "The court must first determine whether the alternate forum is a suitable place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining the attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate

jurisdiction in the litigation.” (Fox Factory, Inc. v. Superior Court (2017) 11 Cal.App.5th 197, 203 [internal quotation marks and citations omitted].) “A case-by-case examination of the parties, their dispute and the relationship of each to the state of California is the heart of the required analysis.” (Id. at p. 204 [internal quotation marks and citation omitted].)

The court finds

that Defendants have met their burden to show that the court should dismiss Plaintiffs’ action on the grounds that California is not a suitable forum because Defendants have demonstrated the existence of a mandatory forum selection clause which governs this dispute.

A forum selection

clause may be either “mandatory” or “permissive.” (Animal Film, Inc. v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 475.) Clauses which contain “language of exclusivity” are mandatory, whereas clauses which merely provide for submission to jurisdiction are permissive. (Id. at 472.) Mandatory forum selection clauses are given effect without regard to the convenience of the parties unless enforcement would be unfair or unreasonable. (Richtek USA, Inc. v. UPI Semiconductor Corp. (2015) 242 Cal.App.4th 651, 661.)

Defendants

present the Certificate of Incorporation for Muso.AI, Inc., filed with the Delaware Secretary of State on June 29, 2017 and signed by Plaintiff Baumgardner as incorporator. (RJN Ex. A.) Article VII of that document states that “[u]nless the Corporation consents in writing to the selection of an alternative forum, the Court of Chancery of the State of Delaware shall be the sole and exclusive forum for . . . (B) any action or proceeding asserting a claim of breach of fiduciary duty owed by any director, officer, employee or agent of the Corporation to the Corporation or the Corporation’s stockholders . . . [or] (D) any action or proceeding asserting a claim governed by the internal affairs doctrine[.]” (Id.)

The court finds

that Article VII is a mandatory forum selection clause which is facially applicable to this dispute. The gravamen of the Complaint is that the Defendants violated their corporate obligations and breached their fiduciary duties to Plaintiffs and to the corporation through improper share transfers.

(Complaint ¶¶ 24-40.) Plaintiff Baumgardner is the incorporator and signatory to the Certificate of Incorporation. (RJN Ex. A.) Defendants also present evidence that Plaintiff Baumgardner transferred his shares in Muso.AI to JB Music Data, and therefore that JB Music Data is a shareholder and thus subject to the Certificate of Incorporation. (RJN Ex. B.) Plaintiff Muso.AI is the entity which was incorporated by that certificate. Plaintiffs' argument that the Residual Stock Purchase Agreements on which this action is based does not contain a forum selection clause is immaterial.

Because the court finds that this action is subject to a mandatory forum selection clause, it must give effect to that clause unless Plaintiffs show that enforcement of the forum selection clause would be contrary to a strong or fundamental public policy of the state of California. (EpicentRx v. Superior Court (2025) 18 Cal.5th 58, 75.) Plaintiffs do not address this issue in their opposition, and the court finds that Plaintiffs have not met their burden to demonstrate that the forum selection clause should not be enforced.

The court therefore grants the motion to dismiss for forum non conveniens.

#### ORDER

The court GRANTS specially appearing defendants Aaron Kaufman, AK Holdings P, LLC, O Dev, LLC, Muso SPV, LLC, and nominal defendant Muso.AI Inc.'s motion to dismiss.

Pursuant to Code of Civil Procedure section 410.30, subdivision (a), the court orders that this action is dismissed.

The court orders specially appearing defendants Aaron Kaufman, AK Holdings P, LLC, O Dev, LLC, Muso SPV, LLC, and nominal defendant Muso.AI Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 21, 2026

---

Robert B. Broadbelt III

Judge of the Superior Court